

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 735

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ELECTIONS; AMENDING CHAPTER 66, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-6628B, IDAHO CODE, TO PROVIDE CERTAIN REQUIREMENTS FOR PERSONS ENGAGED IN PAID IN-PERSON CANVASSING ACTIVITIES; AMENDING SECTION 67-6625, IDAHO CODE, TO PROVIDE A CODE REFERENCE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 66, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-6628B, Idaho Code, and to read as follows:

67-6628B. PAID IN-PERSON CANVASSING ACTIVITIES -- DISCLOSURES. (1)
For the purposes of this section:

(a) "Paid in-person canvassing activities" means canvassing activities performed by an individual who accepts financial compensation for the purpose of influencing how a person votes, including but not limited to soliciting personal residences or public locations to communicate with or distribute materials to possible voters about political candidates or ballot measures; conducting in-person get-out-the-vote efforts in relation to any candidate or ballot measure; and any other direct, in-person contact or interaction intended to affect an individual's electoral participation or preferences.

(b) "Phone banking activities" means any organized outreach activity in which telephone calls are made to Idaho qualified electors for the purpose of persuading such electors to vote or to vote in a particular manner, providing information to such electors regarding an election or voting, or mobilizing such electors to vote.

(2) Persons who engage in any paid in-person canvassing activities shall:

(a) Meet all of the qualifications of a qualified elector, as defined in section 34-104, Idaho Code, except that a person under eighteen (18) years of age shall only be required to have resided in this state for at least thirty (30) days; and

(b) Verbally notify any person with whom they communicate that they are being compensated to perform paid in-person canvassing activities and provide the name of the person or entity providing payment for such paid in-person canvassing activities.

(3) At all times while engaging in paid in-person canvassing activities, such persons shall wear a badge that is clearly visible to any person with whom they intend to communicate with that contains the words "paid political advocate."

(4) The Idaho secretary of state shall promulgate rules to implement the provisions of this section, which shall include specifications regard-

ing font, shape, color, and size requirements for the badge required pursuant to subsection (3) of this section.

(5) The provisions of this section shall not apply to:

(a) Volunteers acting without compensation or reimbursement beyond incidental expenses;

(b) Individuals whose paid in-person canvassing activities are incidental to broader campaign employment responsibilities;

(c) Phone banking activities; or

(d) Candidates engaged in in-person canvassing activities for their own election campaign.

(6) The Idaho secretary of state shall establish a system on its website to receive complaints for alleged violations of the provisions of this section and shall investigate such complaints. If the secretary of state determines that a violation of this section has occurred, the secretary of state shall refer the matter to the attorney general or the appropriate prosecuting attorney for enforcement pursuant to section 67-6625, Idaho Code.

SECTION 2. That Section 67-6625, Idaho Code, be, and the same is hereby amended to read as follows:

67-6625. VIOLATIONS -- CIVIL FINE -- MISDEMEANOR PENALTY -- PROSECUTION -- LIMITATION -- VENUE. (1) Any person who violates the provisions of sections 67-6603, 67-6604, 67-6606 through 67-6614A, 67-6624, 67-6627 ~~or~~, 67-6628, or 67-6628B, Idaho Code, shall be liable for a civil fine not to exceed two hundred fifty dollars (\$250) if an individual, and not more than two thousand five hundred dollars (\$2,500) if a person other than an individual. The burden of proof for such civil liability shall be met by showing a preponderance of the evidence.

(2) Any person who violates section 67-6605, Idaho Code, and any person who knowingly and willfully violates sections 67-6603 through 67-6614A, 67-6624, 67-6627 ~~or~~, 67-6628, or 67-6628B, Idaho Code, is guilty of a misdemeanor and, upon conviction, in addition to the fines set forth in subsection (1) of this section, may be imprisoned for not more than six (6) months or be both fined and imprisoned.

(3) The attorney general or the appropriate prosecuting attorney may prosecute any violations of this chapter.

(4) Prosecution for a civil or misdemeanor violation of this chapter must be commenced within two (2) years after the date on which the violation occurred. Prosecution for a felony violation of this chapter must be commenced pursuant to the provisions of section 19-402, Idaho Code.

(5) Venue for prosecution under the provisions of this chapter shall be in the county of residence of the defendant if the defendant is a resident of the state of Idaho, otherwise venue shall be in Ada county.

SECTION 3. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.